Pakistan in the event of a breach in the wall of nuclear non-proliferation, the question of safeguards, a more binding commitment from India on further nuclear testing, and on enrichment and reprocessing. In Vienna, New Delhi and in capitals of NSG countries, India worked to narrow the differences between the two 'camps' in the NSG. The Americans were working in tandem on their allies to convince the fence-sitters such as Mexico, Turkey and Egypt. By the time the NSG met in early August 2008 in Vienna, a number of countries had been persuaded to support the clean waiver for India, but significant opposition still remained. India made a last effort to reach out to the 'opposition'. The Minister of State in the Prime Minister's Office was sent to Beijing. Coincidentally, Sonia Gandhi, Chairperson of the United Progressive Alliance, was scheduled to travel for the Beijing Olympics at the same time that the matter came before the NSG.

On 1 August 2008, the board of governors of the IAEA unanimously approved the 'Agreement between Government of India and the IAEA for Application of Safeguards to Civilian Facilities', clearing the way for the matter to be taken up by the NSG. China recognized that the matter was coming to a head but still hesitated to show its opposition openly. Their Ambassador to the IAEA referred to 'a number of countries' which had doubts or concerns about giving India a clear waiver, and hoped that all voices would be heard. [22] It also stuck to its ambiguous position of referring to the right to peaceful uses of nuclear energy in consonance with international non-proliferation obligations. When the NSG met in Vienna in early August 2008, discussion began on the US draft exemption. The US disarmed some critics of the deal by clarifying at the outset that it would not recognize India as a nuclear weapons state. Several smaller Western European states and New Zealand wanted new conditions to be written into the waiver, such as